

APPENDIX I

**CLAREMONT CONSERVATION COMMISSION
BYLAWS***

1. Name: Conservation Commission
2. Purpose: 36-A:2 Conservation Commission.
 - a. A city or town which accepts the provisions of this chapter may establish a conservation commission, hereinafter called the commission, for the proper utilization and protection of the natural resources and for the protection of watershed resources of said city or town.
 - b. Such commission shall conduct researches into its local land and water areas and shall seek to coordinate the activities of unofficial bodies organized for similar purposes, and may advertise, prepare, print and distribute books, maps, charts, plans and pamphlets which in its judgment it deems necessary for its work.
 - c. It shall keep an index of all open space and natural, aesthetic or ecological areas within the city or town, as the case may be, with the plan of obtaining information pertinent to proper utilization of such areas, including lands owned by the state or lands owned by a town or city.
 - d. It shall keep an index of all marshlands, swamps and all other wet lands in a like manner, and may recommend to the city council or selectmen or to the department of natural and cultural resources a program for the protection, development or better utilization of all such areas.

***Editor's note**—Printed herein are the Claremont Conservation Commission Bylaws adopted on May 9, 1989 and amended on June 13, 1989, January 4, 1990 and, September 24, 2021(1). Style and capitalization have been made uniform. Obviously misspelled words have been corrected without notation. Words added for clarification have been added in brackets. Amendments have been included and are indicated by a history note immediately following the amended section.

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- e. It shall keep accurate records of its meetings and actions and shall file an annual report which shall be printed in the annual town or municipal report.
 - f. The commission may appoint such clerks and other employees or subcommittees as it may from time to time require.
3. Officers of the Commission: Officers shall consist of chairperson, vice chairperson, secretary and treasurer.
4. Acting Chairperson: In the absence of the chairperson and vice-chairperson, the Commission will choose one (1) of its regular members to act as chair.
5. Duties of Officers:
- a. Duties of the Chairperson
 - i. Preside over all meetings of the Commission
 - ii. Determine the agenda of each meeting of the Commission
 - iii. To act as representative of the Commission in matters outside of meetings
 - b. Duties of the Vice-Chairperson
 - i. Serve in the absence of the chairperson
 - c. Duties of the Treasurer
 - i. Keeping track of expenditures
 - d. Duties of the secretary. It shall be the duty of the noncommission secretary to:
 - i. take complete and accurate minutes;
 - ii. tape record all meetings;
 - iii. prepare in writing the official minutes of all meetings;
 - iv. mail to each member the official minutes of prior meetings and the agenda for the upcoming meeting no later than Friday morning prior to the meeting;
 - v. post notices of meetings
 - vi. prepare the annual report to the city.

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6. Election of Officers: Officers will be elected annually at the first regular meeting in January.

7. Duties of Members: Continued service on the Commission requires attending at least two-thirds of scheduled meetings in a calendar year unless extraordinary circumstances apply. The chairperson shall admonish members who do not comply and shall ask the City Manager to replace any members unable or unwilling to attend after such admonishment is accordance with RSA 673:13.

8. Committees:

- a. Special purpose and study committees which the conservation commission may, from time to time, deem necessary in order to conduct its business shall be appointed by the chairperson.
- b. Any such committee shall cease to exist when its final report is acted upon by the commission or at the next organizational meeting whichever is sooner, unless otherwise voted by the commission.

9. Officers and Employees to Attend: Any employee or agent of the City, when requested by the City Manager or presiding officer of the Commission through the City Manager, shall attend any regular, adjourned, or special meeting of the Conservation Commission to confer with the Commission on relevant matters.

10. Meetings of the Commission:

- a. All meetings of the Conservation Commission shall be held in accordance with RSA 91-A:2 and 91-A:3 relating to meetings open to the public, executive sessions, and any amendments to the RSAs.
- b. The conservation commission shall meet in regular session each month on a day designated by the members at the beginning of each year.
- c. Additional meetings, hearings or work sessions may be scheduled by the chairperson as the need arises.

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- d. Time - 6:00 p.m. or such time is deemed necessary and properly warned.
- e. Place: Council Chambers, City Hall or such location as is deemed necessary and properly noticed.
- f. Notice: Public notice of all meetings shall be given in accordance with the provisions of RSA 91-A:2 II
- g. Rules of Order: The rules of order for all meetings shall be determined by the chairperson to maintain order and to allow open, informal discussion in favor of substance rather than procedure. Any ruling of the chair may be challenged by any member. Upon such challenge, the ruling shall be voted on by the Commission, with a majority vote of members present required to overrule the chair.
- h. Order of Business: The business of all regular meetings of the conservation commission shall proceed in the following order:
 - i. Roll call
 - ii. Appointment of alternates
 - iii. Minutes of the preceding meeting(s)
 - iv. Old business and related public hearings
 - v. New business and related public hearings
 - vi. Reports of commission committees
 - vii. Communications
 - viii. Adjournment
- i. The chairperson shall have the discretion to rearrange the agenda should the need to do so arise.
- j. Any member may request, and have placed on the agenda, an item for discussion.
- k. Quorum: In order to transact any business before the commission, a quorum consisting of at least four (4) members must be present (see RSA 673:10, III).

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- l. Recognition: Commission members do not have to stand to be recognized to speak or to make a motion. The chairperson shall recognize any member, by the member raising his or her hand.
- m. Permission required to address the Commission: Persons other than members of the Commission shall not be permitted to address the Commission except by consent of the chairperson. Anyone wishing to address the Commission shall indicate his intent and the subject matter to the chairperson.
- n. Excusal during meetings: Any member may leave the Commission chambers while in regular session after notice to the chairperson of pressing business; members shall maintain a quorum. (RSA 673:10, III)
- o. Motion to be stated by the chair; withdrawal of motion: When a motion is made and seconded, it shall be reiterated by the chairperson before the motion is offered for debate. At the request of the chair or any member of the Commission, the motion shall be in writing. A motion may not be withdrawn by the mover without the consent of the second.
- p. Voting:
 - i. Every member present when a motion is put to vote shall vote either yes or no by raising his hand when called by the chair.
 - ii. Any abstentions shall be a "yes" vote unless the member has been excused from voting by the chairperson.
 - iii. Any member wishing to be excused from voting on a question must—prior to the vote—briefly state the reason for his request. The decision thereon shall be determined by the chair and shall be made without debate.
 - iv. All votes shall be recorded in such a manner that the public may know who voted for or against each motion.

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- v. Motions pass with a majority of those present voting in favor. Ties lose with a quorum of four (4).
 - q. Right to hold dissenting opinion: Recognizing that the majority is not always right, no member shall be prevented from seeking information or legal opinions from City staff or elsewhere simply because he or she is outvoted on an issue. No unanimous opinions may be required when a vote is called.
11. Conduct of Hearings:
- a. Additional hearings. In addition to hearings required by statute or ordinance, the conservation commission may, at its discretion, hold public hearings when it decides that such hearings will be in the public interest.
 - b. Publication and posting of hearing notices. Notice of such hearing shall be published and duly posted at least ten (10) calendar days (not including the day of the posting or the day of the hearing) in advance.
 - c. Summary of issues. The matter before the conservation commission be presented in summary by a designated member of the commission, by staff, or by consultants.
12. Conflict of Interest:
- a. Abutters. Anyone owning or leasing land abutting a piece of property which is the subject of an application before the commission is disqualified from acting on that application. (*Totty v. Grantham Planning Board*, 120 NH 390 1980).
 - b. RSA 49-A:82 states that no city official shall take part in a decision in which he has a financial interest substantially "greater than any other citizen or taxpayer.", therefore, commission members with a direct financial interest in the outcome of a case have a conflict of interest and must step down. Any members of the commission who may receive such financial or extraordinary personal benefit on a pending matter shall reveal this conflict to the chairperson, request to be excused from any involvement therein, and shall move to the public section of the

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meeting area prior to any discussion or action on the matter. The failure of any member so involved to follow this procedure shall result in an admonition by the chairperson. Numerous incidents of like value shall require the chairman to request the resignation of the member from the commission for the good of the city, in accordance with RSA 673:13.

- c. Prejudgment. Any member who might be shown, in a court of law, to have clearly prejudged an issue before the commission, places that issue in doubt and the city at great legal risk, therefore he should not take part in discussion or voting. He may, however, participate in the public hearing as a private citizen.
 - d. If anyone—on or off the commission—raises the question of prejudgment or conflict of interest on the part of any commission member and that member is unwilling to voluntarily step down, the remaining members of the commission shall hear any evidence the challenger and the challenged may have; subsequently, the commission, by two-thirds vote, shall decide whether the challenged member may sit. If there is substantial evidence of prejudgment or direct financial interest, the vote should be to require the challenged member to step down. Any two (2) members of the commission may request that the chair or the city manager secure a written opinion as to the potential conflict of interest of any commission member.
13. Wetlands Permit Application review
- a. Intervention. The chairperson, after receiving two (2) requests from commission members on an application to the state wetlands board, will intervene on behalf of the conservation commission by requesting that the wetlands board delay its decision regarding the application until the wetlands board has the opportunity to review the commission comments or concerns.
 - b. Standard Applications.
 - i. Commission receives application from the City Clerk.

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- ii. Within 14 days of receipt, notify NH DES of the Commission's intent to intervene.
- iii. Commission reviews the application with the following guidance:
 - 1. Check Soils, Vegetation and Hydrology:
 - a. Are hydric soils on the property identified on NRCS soil survey maps?
 - 2. Check Conservation Plans:
 - a. Is this parcel/location mentioned in the City's conservation plan?
 - b. Is this parcel indicated as a conservation priority on other plans?
 - i. State Conservation Plan or Wildlife Action Plan
 - ii. National Wetland Inventory or Natural Heritage Bureau
 - 3. Check local and town ordinance:
 - a. Is this wetland under the jurisdiction of the City's ordinance? (Keep in mind all wetlands may not be jurisdictional)
 - b. Is the area designated as prime wetlands?
 - c. Are wetlands classification(s) identified?
 - 4. Conduct site visit to determine what the impacts to the wetlands will be if permit is approved as presented. While at the site, check to make sure the basic information on the application is correct.
 - 5. Check the application for:
 - a. Is the information accurate and current? Are measurements correct?
 - b. Is there a report that accompanies the delineation plan? (You should request a delineation report if it has not been provided.)
 - c. Are ALL wetlands delineated on the parcel map?

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- d. Are individual flag locations identified on the plan?
 - e. Are ALL impacts outlined and shown on the application?
 - f. Who delineated the wetlands?
 - i. Are they certified by NH Board of Natural Scientists?
 - ii. Is the plan stamped by a Certified Wetland Scientist? (Beware of cut & pasted stamps).
 - g. Review the description of the wetland:
 - h. Is it correctly identified/classified?
 - i. Is it isolated or contiguous to another parcel?
 - j. Does it have a special value or function?
 - k. Is this a natural wetland boundary or man-made boundary?
6. Check the proposed project:
- a. Are ALL alternatives listed on the applications that would reduce wetland impacts?
 - b. Will it impact abutters?
 - c. Do you have any questions regarding the information on the permit? Do you need additional information?
7. Meet with applicant to discuss questions or concerns the Commission may have.
8. Create report to NH DES of findings, determinations, and questions.
- a. Does the Commission wish to request conditions of approval based on its review of the project and its findings?
 - b. Does the Commission have unanswered questions of the applicant?
 - c. Does the Commission conclude that the application should be denied? Based on what grounds?

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9. Submit report to NH DES with recommendations within 40 days of receipt of the application.
10. Submit copy of report to applicant.
- c. Expedited Review - Minimum Impact Only
 - i. Commission receives application from the City Clerk.
 - ii. Commission decides to:
 1. waive right to intervene and signs application to that effect
 2. Intervene and withholds signature. Application will then be reviewed as for a Standard Permit (see above).
- d. Wetlands Permit by Notification - Minimum Impact Only
 - i. Commission receives application from the City Clerk.
 - ii. Commission decides to:
 1. waive right to intervene and signs application to that effect
 2. Intervene and withholds signature. Application will then be reviewed as for a Standard Permit (see above).
14. Procedure for sand and gravel extraction permit applications:
 - a. Application is received and reviewed by the Commission at a public meeting.
 - b. The Commission shall, at a public meeting, create a report to the Planning Board that shall include:
 - i. Findings on the location of the proposed project with regard to any ecologically significant areas (ESAs).
 - ii. A request for an appropriate mitigation plan from the applicant if an ESA is to be impacted by the proposed project. The plan shall address minimiz-

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ing or eliminating any negative impacts to the ESA during the life of the project and following reclamation of the site.

- c. A copy of the final approved permit, its conditions and site plan shall be obtained by the Commission.

15. Procedure to handle requests from the planning or zoning board for advice or review:

- a. All such requests shall be received and reviewed at a public meeting of the Commission.
- b. The Commission shall determine the best response to the request and formulate its advice in a public meeting.

16. Rule suspension: The conservation commission may suspend any of these bylaws for a specific purpose by a unanimous vote of the members present.

17. Procedure for amendment of bylaws: These bylaws may be amended at any regular or special meeting by a two-thirds vote of the entire membership of the conservation commission, provided that the agenda for said meeting specifies the amendment to be voted on.

